

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Robert Bryan	Team: Squad #02	CCRB Case #: 201808083	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 09/29/2018 12:15 PM	Location of Incident: West Drive and 86th Street Transverse (Central Park)	18 Mo. SOL 11/13/2020	Precinct: 22
Date/Time CV Reported Mon, 10/01/2018 12:39 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 10/01/2018 12:39 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Sidonna Brown	24309	962273	019 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Sidonna Brown	Abuse: Police Officer Sidonna Brown stopped § 87(2)(b)	A . Exonerated
B . POF Sidonna Brown	Abuse: Police Officer Sidonna Brown refused to provide her name to § 87(2)(b)	B . Unsubstantiated
C . POF Sidonna Brown	Abuse: Police Officer Sidonna Brown refused to provide her shield number to § 87(2)(b)	C . Unsubstantiated

Case Summary

On October 1, 2019, § 87(2)(b) filed this complaint via the CCRB website.

At approximately 12:15 p.m. on September 29, 2018, § 87(2)(b) was rollerblading in Central Park down a path leading from West Drive to the Arthur Ross Pinetum, near the 86th Street Transverse, when Police Officer Sidonna Brown of the 19th Precinct told § 87(2)(b) “You can’t go there.” As § 87(2)(b) was braking, Police Officer Brown grabbed him by his left arm (**Allegation A – Abuse of Authority – Stop; exonerated**). § 87(2)(b) asked Police Officer Brown for her name and shield number, and she allegedly did not provide either (**Allegation B – Abuse of Authority – Refusal to Provide Name; unsubstantiated**) (**Allegation C – Abuse of Authority – Refusal to Provide Shield Number; unsubstantiated**).

No video footage of this incident was found.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Sidonna Brown stopped § 87(2)(b)

On October 5, 2018, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 01). On November 11, 2018, § 87(2)(b) was interviewed at the CCRB. On December 18, 2018, Police Officer Brown was interviewed at the CCRB.

It is undisputed that Police Officer Brown told § 87(2)(b) that the area where he was rollerblading was off limits and that she stopped him by grabbing his forearm.

§ 87(2)(b) stated that he was rollerblading on a foot path leading from West Drive to the Arthur Ross Pinetum in Central Park when Police Officer Brown told him that an area near the Arthur Ross Pinetum was closed and that he could not go further. As he braked and began to stop, Police Officer Brown grabbed his left forearm. There was an unidentified white male civilian standing near Police Officer Brown who was also saying that the area was closed and that § 87(2)(b) could not go there. § 87(2)(b) did not recall whether it was Police Officer Brown or the male civilian who spoke to him first. § 87(2)(b) saw a lot of police activity in the area around the path, but he made no mention of any festival or event taking place nearby.

Police Officer Brown stated that she was on a special detail providing security for a concert on the Great Lawn. § 87(2)(b) ignored the instructions of a concert employee to stay out of a VIP section that was cordoned off by a gate, and proceeded to rollerblade through the gate’s entrance. At this point, Police Officer Brown grabbed § 87(2)(b)’s forearm and explained to him that he was not allowed in the restricted area.

An article from Variety.com shows that the Global Citizen Festival took place on the Great Lawn in Central Park on September 29, 2018 and was attended by 60,000 people (Board Review 02). A photograph of the concert from NME.com shows that the event would have been visible to anyone near the Great Lawn (Board Review 03). A map of Central Park obtained from

www.centralparknyc.org on February 1, 2019 shows that the Arthur Ross Pinetum is directly northwest of the Great Lawn. A map of Global Citizen Festival 2018 obtained from www.globalcitizen.org on February 1, 2019, shows that there was an “Ultimate VIP entrance” leading from West 85th Street and Central Park West to the northwest corner of the Great Lawn (Board Review 08).

§ 87(2)(g)

According to New York Penal Law section 140.05, a person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises (Board Review 04).

People v. De Bour, 40 N.Y.2d 210 (1976) states that an officer must have reasonable suspicion that a person has committed, is committing, or is about to commit a crime in order to justify stopping that person (Board Review 05).

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation A** be exonerated.

Allegation (B) Abuse of Authority: Police Officer Sidonna Brown refused to provide her name to § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Sidonna Brown refused to provide her shield number to § 87(2)(b)

§ 87(2)(b) stated that he asked Police Officer Brown for her name and shield number two or three times, but she ignored his requests. Her shield and name tag were both visible during the incident. He read aloud what was written on the shield, which said “Brown” and her shield number (24309), and memorized this information.

Police Officer Brown stated that § 87(2)(b) asked for her name, and that she could not recall if he asked for her shield number. She responded by verbally telling him her name and shield number.

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegations B and C** be unsubstantiated.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one other CCRB complaint and has been named as a victim in two other allegations (Board Review 06).

- § 87(2)(b) [REDACTED]
- Police Officer Brown has been a member of service for two years, and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- As per the New York City Comptroller's office, no Notice of Claim has been filed in regards to this incident as of January 30, 2019 (Board Review 09).

Squad 2

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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